No. 25-5660

In the United States Court of Appeals for the Sixth Circuit

IN THE UNITED STATES COURT OF APPEALS
FOR THE SIXTH CIRCUIT

NetChoice, LLC,
Plaintiff-Appellant,

v.

Jonathan Skrmetti, in his official capacity as the Tennessee Attorney General & Reporter,
Defendant-Appellee.

On Appeal from the United States District Court for the Middle District of Tennessee, No. 3:24-cv-01191

BRIEF OF APPELLANT NETCHOICE

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CIRCUIT RULE 26.1 DISCLOSURE STATEMENT

NetChoice makes the following disclosure under Sixth Circuit Rule 26.1:

1. Is NetChoice a subsidiary or affiliate of a publicly owned corporation?

No. NetChoice is a nonprofit trade association organized under the laws of the District of Columbia.

2. Is there a publicly owned corporation, not a party to the appeal or an amicus, that has a financial interest in the outcome?

None known.

/s/ Scott A. Keller

Scott A. Keller

Counsel of Record for Plaintiff-Appellant NetChoice

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/s/ Scott A. Keller

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STATEMENT IN SUPPORT OF ORAL ARGUMENT

Although the district court's error in this case is plain, the important First Amendment and preliminary-injunction issues in this case warrant oral argument.

INTRODUCTION

Tennessee House Bill 1891 ("Act") violates the First Amendment by restricting fully protected speech on "social media" websites in multiple ways. The Act targets specific websites based on their content. And it restricts users' access to, and engagement with, protected speech by requiring those websites to obtain (1) age verification for *all* users, § 47-18-5703(a)(1); and (2) parental consent for minors, § 47-18-5703(a)(2).[1] These requirements violate the First Amendment. *E.g.*, *Free Speech Coal., Inc. v. Paxton*, 145 S. Ct. 2291, 2309 (2025) ("*FSC*") ("submitting to age verification is a burden on the exercise of" the "right to access" protected speech); *Packingham v. North Carolina*, 582 U.S. 98, 107 (2017) (First Amendment protects "access" to social media websites); *Brown v. Ent. Merchs. Ass'n*, 564 U.S. 786, 795 n.3 (2011) (governments lack the "power to prevent children from hearing or saying anything without their parents' prior consent").

Yet the district court here erroneously denied NetChoice's motion for a preliminary injunction preventing the Act's enforcement against NetChoice's covered members. It held that NetChoice did not establish irreparable harm, without first considering the merits of NetChoice's First Amendment challenge—or the implications those irreparable harms have on "the balance of equities" and "public interest." *Winter v. Nat. Res. Def. Council, Inc.*, 555 U.S. 7, 32 (2008).

[1] Statutory citations refer to the Tennessee Code. This brief refers to both "websites" and "applications," § 47-18-5702(9)(A), as "websites."

interest because "it is always in the public interest to prevent the violation of a party's constitutional rights." *Connection Distrib. Co. v. Reno*, 154 F.3d 281, 288 (6th Cir. 1998) (citation omitted). That is especially true here, where an injunction would prevent the balkanization of the internet, where people in Tennessee have less access to fully protected speech than people just one State over.

In denying NetChoice a preliminary injunction, the district court flouted this Court's instruction that "the determination of whether [plaintiff] is likely to succeed on the merits of its First Amendment claim controls the question of the validity of the preliminary injunction." *Planet Aid v. City of St. Johns*, 782 F.3d 318, 323 (6th Cir. 2015).

The district court committed further errors. For instance, although the district court acknowledged that Defendant could enforce the Act at any time, it denied relief because NetChoice could not disprove the court's improper assumption that any enforcement (and thus injury) is not sufficiently "imminent" to justify injunctive relief. Opinion, R.78, Page ID ## 2354-59. But the "State has not suggested that the newly enacted law will not be enforced, no reason to assume otherwise." *Virginia v. Am. Booksellers Ass'n, Inc.*, 484 U.S. 383,

393 (1988); *NetChoice, LLC v. Yost*, 716 F. Supp. 3d 539, 555 (S.D. Ohio 2024); *Computer & Commc'ns Indus. Ass'n v. Paxton*, 747 F. Supp. 3d 1011 (W.D. Tex. 2024); *NetChoice, LLC v. Reyes*, 748 F. Supp. 3d 1105 (D. Utah 2024).

STATEMENT OF JURISDICTION

The district court had subject-matter jurisdiction under 28 U.S.C. §§ 1331 and 1343(a), and it had authority to grant relief under 42 U.S.C. § 1983 and 28 U.S.C. §§ 1651 and 2201(a). This Court has appellate jurisdiction under 28 U.S.C. § 1292(a)(1). The district court denied NetChoice's motion for preliminary injunction on June 18, 2025, Order, R.79, Page ID # 2365, and NetChoice timely filed its notice of appeal on July 18, 2025, Notice, R.83, Page ID # 2402.

STATEMENT OF ISSUES

1. Whether the district court erred by denying NetChoice's motion for preliminary injunction, by concluding that NetChoice failed to demonstrate irreparable harm without considering whether NetChoice was likely to succeed on the merits of its First Amendment arguments (creating a presumption of irreparable harm), the balance of the equities, or the public interest.

2. Whether the district court erred by denying NetChoice's motion for preliminary injunction, by improperly concluding that: (a) any harms are not "imminent"; (b) First Amendment harms to NetChoice members' users are not relevant to irreparable harm; and (c) unrecoverable compliance costs are not irreparable harm.

STATEMENT OF THE CASE

A. Factual background

1. NetChoice members' websites curate, disseminate, and enable vast amounts of speech protected by the First Amendment.

NetChoice is a leading internet trade association. Cleland Decl., R.8-2, Page ID # 67.[2] This brief refers to members with services the Act regulates as, simply, "members."

The Act regulates NetChoice members based on their shared speech-facilitating functions. It is aimed at "social media" websites that "allow users to upload content . . . to share [it] with others," where those "viewing the content can" "react to it, comment on it, or share it themselves." *Moody v. NetChoice, LLC*, 603 U.S. 707, 719 (2024).

As a result, members are covered if they "allow[] users to gain access to information and communicate with one another about it." *Packingham*, 582 U.S. at 107. These websites can influence how people "relate to family and friends, as well as to businesses, civic organizations, and governments."

[2] Automattic, Discord, and Reddit joined NetChoice after litigation began, and are included in NetChoice's First Amended Complaint (R.88)—filed after this appeal was docketed. Amended Complaint, R.88, Page ID # 2422.

and that NetChoice members already have many tools to do so. Parents already have many tools to do so and their children use the internet.

arable harms either. Opinion, R. 78, Page ID ## 2354-62.

"[P]arents may rightly decide to regulate their child's use of social media . . . .

In the month that followed the district court's denial of NetChoice's mo- And many tools exist to help parents with this endeavor." *NetChoice, LLC v. Griffin*,

tion, the parties attempted to negotiate an 2025 WL 978607, at *3 (W.D. Ark. Mar. 31, 2025).

agreed-upon case management order that could have obviated the need for this appeal. The parties could Parents can control what devices minors can access—and when. Cleland Decl.,

R.8-2, Page ID # 62. Not all devices are internet-enabled. *Id.* And devices themselves

not reach an agreement. Defendant continues to refuse to stay enforcement come with many built-in parental-control options. Cleland Decl., R.8-2, Page ID # 63.

of the Act against NetChoice's members while this case proceeds to final

SUMMARY OF THE ARGUMENT

judgment. This timely appeal followed.

NetChoice established irreparable harm, including based on its likelihood of

SUMMARY OF THE ARGUMENT

success on the merits of its First Amendment claims, the unrecoverable compliance costs

I. NetChoice established irreparable harm, including based on its likeli- its covered members face, and the infringements on users' free-speech rights.

hood of success on the merits of its First Amendment claims, the NetChoice's covered members currently face the "Hobson's choice" of either

unrecoverable compliance costs its covered members face, and the infringe- violating the Act and "expos[ing] themselves to potentially huge liability" or "suffer[ing]

ments on users' free-speech rights. the injury of obeying the law during the pendency of the proceedings and any further

review." *Morales v. Trans World Airlines, Inc.*, 504 U.S. 374, 381 (1992). In the face of

A. The record here contains unrebutted evidence of irreparable harm. that choice, NetChoice member Nextdoor has stopped permitting Tennessee minors to

NetChoice's covered members currently face the "Hobson's choice" of access Nextdoor. Motion, R.42, Page ID ## 1851-52.

either violating the Act and "expos[ing] themselves to potentially huge lia- In addition, all NetChoice covered members likewise must expend unrecoverable

bility" or "suffer[ing] the injury of obeying the law during the pendency of compliance costs to comply with the Act's unconstitutional age-verification mandates. These

"unrecoverable compliance costs" are irreparable harm under binding precedent. *Ridley*, 57 F.4th at 556; *de Olim*, 403 U.S. at 202 (Choice members face two kinds of irreparable harm from the Act's enforcement: (1) First Amendment harms; and (2) unrecoverable compliance costs.

ARGUMENT

I. THE ACT'S SPEECH RESTRICTIONS INFLICT IRREPARABLE HARM ON NETCHOICE'S MEMBERS AND THEIR USERS, AND THE DISTRICT COURT'S IRREPARABLE-HARM ANALYSIS VIOLATES THIS COURT'S PRECEDENT.

First Amendment harms. NetChoice members face present and ongoing First Amendment harms.

A. The record contains ample evidence of irreparable harm.

The uncontested record evidence demonstrates that NetChoice members face two kinds of irreparable harm from the Act's enforcement: (1) First Amendment harms; and (2) unrecoverable compliance costs.

One NetChoice member—Nextdoor—stopped disseminating fully protected speech to minors in Tennessee because the Act took effect without an injunction. As a result, both Nextdoor *and* Tennessee minors who would like to use Nextdoor have suffered—and continue to suffer—the First Amendment harms that this Court's precedent presumes. *See infra* pp.30–34. This "loss of First Amendment freedoms . . . unquestionably constitutes irreparable injury." *Cuomo*, 592 U.S. at 19 (quoting *Elrod*, 427 U.S. at 373).

This harm will persist unless and until a court issues an order enjoining enforcement of the Act. And these harms are irreparable: When NetChoice prevails on the merits in this case, Nextdoor will not be able to go back in time to provide minor users in Tennessee access to information about the

II. NetChoice established the presumed irreparable injury because it is likely to succeed on the merits of its claims that the Act's speech restrictions violate the First Amendment.

A. The Act's parental-consent requirement for minors to access fully protected speech violates the First Amendment.

The Act restricts minors' access to fully protected speech by requiring websites to secure parental consent before permitting minors to create accounts. § 47-18-5703(a)(2). This violates Supreme Court precedent, which holds that the government cannot require minors to obtain their "parents' prior consent" to engage in protected speech. *Brown*, 564 U.S. at 795 n.3.

B. The Act impedes *all* users' access—minors and adults—to covered websites by requiring users to "verify the[ir] age[s]" to become "account holder[s]" and access protected speech on covered websites. § 47-18-5703(a)(1). Yet *FSC* held that "submitting to age verification is a burden on the exercise of" the "right to access speech" protected by the First Amendment. 145 S. Ct. at 2309. That is particularly true here, where the covered websites disseminate "staggering" amounts of speech that is protected both as to adults and minors. *Moody*, 603 U.S. at 719.

omitted). On the other side of the ledger, no substantial harm to others can be said to inhere in [the] enjoinment of an unconstitutional law. *Deja Vu*, 274 F.3d at 400.

CONCLUSION

This Court should reverse the district court's judgment, directing the district court to preliminarily enjoin Defendant's enforcement of the Act.

Dated: September 3, 2025

Respectfully submitted,

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CERTIFICATE OF COMPLIANCE

This brief complies with: (1) the type-volume limitation of Federal Rule of Appellate Procedure 32(a)(7)(B) because it contains 1,472 words, excluding the parts of the brief exempted by Rule 32(f); and (2) the typeface requirements of Rule 32(a)(5) and the type style requirements of Rule 32(a)(6) because it has been prepared in a proportionally spaced typeface (14-point EB Garamond) using Typst 0.15.0. The word count is computed from the markdown source of this brief.

/s/ Scott A. Keller
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September 3, 2025
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CERTIFICATE OF SERVICE

I certify that on September 3, 2025, this brief was served via CM/ECF on all registered counsel and transmitted to the Clerk of the Court.

/s/ Scott A. Keller
Signature

September 3, 2025
Date

/s/ Scott A. Keller
Scott A. Keller

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DESIGNATION OF DISTRICT COURT RECORD

Appellant NetChoice designates the following filings from the District Court's electronic records under Sixth Circuit Rules 28(b)(1)(A)(i) and 30(g)(1):

Date Filed	R.No.; Page ID #	Description of Document
October 3, 2024	R.1; Page ID ## 1-32	NetChoice's Complaint for Declaratory and Injunctive Relief
October 3, 2024	R.8; Page ID ## 51-52	NetChoice's Motion for Preliminary Injunction
October 3, 2024	R.8-2; Page ID ## 59-70	Declaration of Bartlett Cleland (NetChoice)
October 3, 2024	R.8-3; Page ID ## 71-83	Declaration of Gautham Pai (Nextdoor)
October 3, 2024	R.8-4; Page ID ## 84-99	Declaration of Denise Paolucci (Dreamwidth)
October 3, 2024	R.9; Page ID ## 100-30	NetChoice's Memorandum in Support of Motion for Preliminary Injunction
October 16, 2024	R.23; Page ID # 175	Order Granting Joint Motion for Scheduling Order
January 2, 2025	R.42; Page ID ## 1850-54	NetChoice's Motion to Ascertain Status
January 3, 2025	R.43; Page ID ## 1855-57	Defendant's Opposition to Motion to Ascertain Status
January 7, 2025	R.45; Page ID ## 1859-63	NetChoice's Reply in Support of Motion to Ascertain Status
January 15, 2025	R.47; Page ID # 1868	Order of Recusal

January 16, 2025	R.48; Page ID ## 1869-74	NetChoice's Motion for Temporary Restraining Order and Renewed Motion for Preliminary Injunction
February 14, 2025	R.58; Page ID ## 1993-2006	Order Denying Temporary Restraining Order
June 18, 2025	R.78; Page ID ## 2337-64	Memorandum Opinion of Court
June 18, 2025	R.79; Page ID # 2365	Order Denying Preliminary Injunction